

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: August 3, 2026

Time: 2:00 PM

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1	Bui v. Elliot	Before the Court at present is the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Moving Defendants"). The Motion is GRANTED. The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that

personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].)

When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate" and "**cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts.**" (*Swenberg v. dmarcian, Inc.* (2001) 68 Cal.App.5th 280, 291; *DVI, Inc. v. Superior Ct.* (2002) 104 Cal.App.4th 1080, 1091 ("**An unverified complaint has no evidentiary value in meeting plaintiff's burden of proving minimum contacts.**")

Plaintiff's declaration filed with the Opposition (at ROA 73) fails to meet Plaintiff's burden here. He conclusively asserts that he was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. He asserts that he was paid through various entities but "the source of the funds was always nominally from a Quintessentially bank account," without presenting any foundation for those assertions or supporting evidence. In sum, Plaintiff has not provided one paystub, piece of correspondence, company report, termination notice, etc., suggesting he was employed by any of the Moving Defendants, let alone all of them.

Plaintiff has thus failed to meet his burden here.

In contrast, Moving Defendants have presented evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and they assert that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, and Ellis Decls., at ROAs 31 and 79.)

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Moving Defendants. But Plaintiff has failed to identify any specific areas of inquiry he would pursue, what specific discovery efforts have been made to date, or what facts he might obtain through discovery that

		would support specific jurisdiction as to these Moving Defendants. That request is therefore DENIED. The Motion is therefore GRANTED. Moving Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h). The Requests for Judicial Notice presented by both sides (ROAs 31, 69 and 79) are GRANTED under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Moving Defendants to give notice of this ruling.
2	Bui v. Elliot	Before the Court at present is the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Moving Defendants"). The Motion is GRANTED. The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].) When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the

court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate" and "**cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts.**" (*Swenberg v. dmarcian, Inc.* (2001) 68 Cal.App.5th 280, 291; *DVI, Inc. v. Superior Ct.* (2002) 104 Cal.App.4th 1080, 1091 ("**An unverified complaint has no evidentiary value in meeting plaintiff's burden of proving minimum contacts.**")

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Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Moving Defendants. But Plaintiff has failed to identify any specific areas of inquiry he would pursue, what specific discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to these Moving Defendants. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. Moving Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice presented by both sides (ROAs 36 and 74) are **GRANTED** under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Moving Defendants' Evidentiary Objections (ROA 84) are **OVERRULED**.

		Counsel for Moving Defendants to give notice of this ruling.
3	Au v. Elliot	Before the Court at present is the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Moving Defendants"). The Motion is GRANTED. The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].) When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991-992.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate" and "cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts." (<i>Swenberg v. dmarcian, Inc.</i> (2001) 68 Cal.App.5th 280, 291; <i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal.App.4th 1080, 1091 ("An unverified complaint has no evidentiary value in meeting plaintiff's burden of proving minimum contacts.") Plaintiff's declaration filed with the Opposition (at ROA 73) fails to meet Plaintiff's burden here. She conclusively asserts that she was employed by "Quintessentially (UK) Limited" in Los Angeles, but

		offers no context for that assertion and no supporting evidence. she asserts that she was paid through various entities but “the source of the funds was always nominally from a Quintessentially bank account,” without presenting any foundation for those assertions or supporting evidence. In sum, Plaintiff has not provided one paystub, piece of correspondence, or company report suggesting he was ever employed by any of the Moving Defendants, let alone all of them. Plaintiff has thus failed to meet her burden here. In contrast, Moving Defendants have presented evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and they assert that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, and Ellis Decls., at ROAs 31 and 79.) Plaintiff asserts that she should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Moving Defendants. But Plaintiff has failed to identify any specific areas of inquiry he would pursue, what specific discovery efforts have been made to date, or what facts she might obtain through discovery that would support specific jurisdiction as to these Moving Defendants. That request is therefore DENIED. The Motion is therefore GRANTED. Moving Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h). The Requests for Judicial Notice presented by both sides (ROAs 31, 70 and 78) are GRANTED under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Moving Defendants to give notice of this ruling.
4	Natura Global DMCC v. Keegan Commodities, LLC	The demurrer of defendants Keegan Commodities, LLC and Matthew Keegan (collectively, Defendants) directed to the complaint of plaintiff Natura Global DMCC (Plaintiff) is SUSTAINED with 20 days leave to amend. Given Plaintiff filed no substantive opposition to the demurrer and attempted to file an amended complaint (which was rejected first due to procedural issues, then as untimely), Plaintiff implicitly conceded the demurrer’s merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; ROA 24, 26, 27.) Moreover, the parties are in apparent agreement that a first amended complaint should be filed as the parties submitted a “Stipulation Re: First Amended Complaint.” (ROA 31.) The Court notes the order on this stipulation was not entered because it made no mention of when the first amended complaint would be filed. As noted, the amended

		complaint was rejected twice. There is thus no first amended complaint on file with the Court. The demurrer is SUSTAINED with 20 days leave to amend. Case management conference is CONTINUED to December 4, 2026, at 9:30 a.m. Defendants shall give notice.
5	Vanbuskirk v. Chedraui USA, Inc.	Before the Court is a motion by defendant Chedraui USA, Inc. dba El Super to maintain the confidentiality of documents bearing numbers CHEDRAUI 0030-0042. For the reasons set forth herein, the motion is GRANTED. The within action arises from a trip and fall incident where plaintiff Rosalba Vanbuskirk alleges that while she was shopping at El Super, an employee placed a restocking cart behind her and that created a tripping hazard which caused her to fall. In the course of discovery, the parties entered into a protective order allowing for designation of confidential material including "Private Employee Information such as disciplinary reports, employment documents, or other records." (ROA 51) Defendant designated documents CHEDRAUI 0030-0042. Plaintiff thereafter objected to the confidentiality designation and defendant filed the instant motion. (In the Opposition, plaintiff withdrew her objections to Nos. 35 and 42.) Defendant submits the declaration of David Godinez, its General Liability Manager, who states: "2. Documents marked in this litigation as CHEDRAUI 0030 – 0041 are maintained by Defendant as part of the employee personnel file of Defendant's former employee, Severiano Mendoza. 3. Documents marked in this litigation as CHEDRAUI 0030 – 0034, and 0036 – 0041 were prepared and maintained by Defendant as part of Severiano Mendoza's disciplinary and personnel record and evaluation." (Godinez Decl. ¶¶2-3) Defendant has met its burden to "establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) "When the right to discovery conflicts with a privileged right, the court is required to carefully balance the right of privacy with the need for discovery." (Harris v. Superior Ct. (1992) 3 Cal. App. 4th 661, 665, citing Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.) The burden is therefore on the plaintiff to establish a "legitimate and important countervailing interest" in obtaining records. (Williams v. Superior Court (2017) 3 Cal.5th 531, 552) The Court has reviewed the documents and briefs filed under seal, as well as the arguments of the parties. The Court does not find that the documents are directly relevant to plaintiff's claims. To the contrary, the records relate the disciplinary history and records of a non-party former employee. There is nothing in the records that

		relate to the placement of a restocking cart or procedures/policies relating thereto. Further, plaintiff has provided no evidence as to why the confidential designation should be lifted when the protective order allows plaintiff to use the documents at depositions, with experts and at trial. Accordingly, the motion is GRANTED and documents designated CHEDRAUI 0030-0042 shall remain confidential pursuant to the terms of the protective order at ROA 51. Defendant is ordered to give notice.
6	Catanzarite v. City of Newport Beach	Cont. to 8/31.
7	Twining v. Tarvin	Cont. to 8/10.
8	Vivian v. MHCC, Inc.	Before the Court is an unopposed motion for leave to file a cross-complaint filed by defendant Affordable Coast Glass, Inc. (Defendant) As set forth more fully below, the motion is GRANTED. A party may apply to the court for leave to file a compulsory and/or permissive cross-complaint at any time during the course of the action. (Code of Civ. Proc. § 426.50, § 428.50, subd. (c).) A cross-complaint is compulsory if the cause of action against the plaintiff "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) In addition, a defendant can cross-complain against a codefendant or third party if the cause of action asserted arises out of the same transaction, occurrence, or series of transactions or occurrences set forth in the complaint. (Code of Civ. Proc. § 428.10, subd. (c).) Here, the proposed cross-complaint contains causes of action arising out of the same series or occurrences as the causes of action set forth in the the complaint. (Declaration of Sean Paden, Ex. A.) The Court finds granting leave to file the cross-complaint is in the interest of justice. Counsel for Defendant shall provide notice of this ruling.
9	Black v. Mercy House Living Center	O/C
10	Objective Standard Institute v. Barney et. al.	Before the Court is a motion by plaintiff Objective Standard Institute to seal portions of its evidentiary objections (ROA 46), the declaration of Annie Vinther Sanz (ROA 52) and the declaration of Jonathan D. Dykstra (ROA 140). For the reasons set forth below, the unopposed motion is GRANTED. Plaintiff's request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) The Court finds an overriding interest exists that overcomes the right of public access to the records at issue, as the materials to be

		sealed contain confidential attorney-client privileged information, and a substantial probability exists that the overriding interest will be prejudiced if the records at issue are not sealed. Further, the proposed sealing is narrowly tailored, and there are no less restrictive means to achieve the overriding interest in protecting the information aside from sealing the records. (Cal. Rules of Court, rule 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Counsel for Plaintiff shall give notice of this ruling.
11	Joseph v. Bell	Before the Court is a demurrer filed by defendants David Bell, DDS, M.D; David Bell, MD, Inc. and Orthognathic Surgery (Defendants) to the first amended complaint (FAC) of plaintiff Daniel Joseph (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) Plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. (<i>Hacker v. Homeward Residential, Inc.</i> (2018) 26 Cal.App.5th 270, 280.) Where allegations are subject to different reasonable interpretations, the court must draw inferences favorable to the plaintiff, not the defendant. (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal. App.4th 1228, 1238.) <u>1st cause of action (breach of contract)</u>: The complaint states facts sufficient to constitute this cause of action. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; see also FAC ¶¶ 31-35.) The Court rejects Defendants' argument that the FAC fails to allege Defendants "clearly promise[d] a particular result." While Plaintiff alleges facts suggesting Defendants provided sub-standard care in the hardware removal surgery, the crux of Plaintiff's breach of contract claim is Defendants' alleged failure to perform the orthognathic surgery at all. Notably, a general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (<i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1167.) The demurrer is therefore OVERRULED as to this cause of action. <u>2nd cause of action (breach of implied covenant of good faith and fair dealing)</u>: The complaint states facts sufficient to constitute this cause of action. (<i>Carma Developers (Cal.), Inc. v. Marathon Dev't California, Inc.</i> (1992) 2 Cal.4th 342, 371 [elements]; see also FAC ¶ 38.) Defendants improperly dispute Plaintiff's allegations and rely on extrinsic evidence outside the four corners of the pleading. The demurrer is therefore OVERRULED as to this cause of action.

		<u>3rd cause of action (unjust enrichment)</u>: Unjust enrichment can be asserted as a claim. (<i>Lectrodryer v. SeoulBank</i> (2000) 77 Cal. App. 4th 723, 726; compare <i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 793.) The complaint states facts sufficient to constitute this cause of action, which is pleaded as an equitable claim and alternative to the other causes of action. (<i>Peterson v. Cellico Partnership</i> (2008) 164 Cal.App.4th 1583, 1593 [elements]; see also FAC ¶ 42.) The demurrer is therefore OVERRULED as to this cause of action. <u>4th cause of action (fraud and deceit)</u>: The complaint states facts sufficient to constitute this cause of action. (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [elements]; see also FAC ¶¶ 45-48.) Defendants improperly dispute Plaintiff's allegations and rely on extrinsic evidence outside the four corners of the pleading. The demurrer is therefore OVERRULED as to this cause of action. Counsel for Plaintiff shall give notice of this ruling.
12	Chapple v. Laseraway Medical Group, Inc	Before the court is a motion to strike filed by defendants LaserAway Medical Group, Inc. dba LaserAway (LaserAway); Roy S. Winston, M.D.; and Ritu Chopra, M.D. (collectively, Defendants) directed to the second amended complaint (SAC) of plaintiff Dwayne Chapple (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendants move to strike the claim for punitive damages in the SAC. Punitive damages are sought in connection with the causes of action for fraud and battery and are alleged against LaserAway only. (See SAC ¶¶ 78, 93; Opp. at p. 9:15-18.) It is not clear from the allegations in the SAC that Code of Civil Procedure section 425.13 applies. The SAC does not plead facts showing that LaserAway is a licensed healthcare provider within the meaning of Section 425.13. The SAC does not allege LaserAway is a licensed medical facility or that the individuals who performed the procedure on Plaintiff were licensed health care providers. The SAC, in fact, alleges LaserAway misrepresented that its procedures would be performed by "licensed physicians or other licensed practitioners" and also alleges LaserAway is "illegally practicing medicine." (SAC ¶¶ 48, 69.) In addition, while the SAC names two licensed physicians as defendants, Plaintiff does not allege that these physicians made any misrepresentations to Plaintiff regarding his care and treatment or that these physicians performed the laser hair removal procedure on Plaintiff. The fraud and battery claims, thus, do not appear to be premised on the rendering of professional services by these two physician defendants. It thus does not appear to the Court that Section 425.13 is triggered by the inclusion of these two physician defendants. In terms of Defendants' argument that Plaintiff has not alleged sufficient facts to demonstrate that LaserAway acted with malice, fraud, or oppression, punitive damages may be available under the

		fraud cause of action, which is adequately pleaded. (Civ. Code §3294(a).) Defendants argue that the SAC fails to plead that any officer, director, or managing agent of LaserAway knew of, authorized, or ratified the specific conduct at issue, or personally engaged in the act of oppression, fraud or malice. (Civ. Code §3294(b).) The Court finds the allegations of the SAC sufficient. "Ratification is a fact question and may be proved by circumstantial evidence." (<i>Siva v. Gen. Tire & Rubber Co.</i> (1983) 146 Cal.App.3d 152, 159.) The SAC alleges that LASERAWAY made false statements on its website and social media, and through its employees Elizabeth Stump, Christa Reed, Nancy Dorado, Jennifer Salgado, Leah Becker, and Megan Martinez." SAC ¶ 68. These allegations—that company advertising and no less than six employees repeated the same fraudulent statements—is sufficient to create an inference that the statements were made in support of a company policy created or authorized by a managing agent. (<i>See Ibid.</i> ("Regardless of his official title, a managing agent is an individual who has the discretion to act in `... a managerial capacity ... [by] making decisions that will ultimately determine corporate policy.'")) The motion to strike is DENIED. Plaintiff is ordered to give notice of this ruling.
13	Morton v. Volkswagen Group of America, Inc.	O/C
14	Sanchez v. 2J's Lounge	O/C
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